

B E T W E E N:

MR JABAR SAFI

Claimant

-v-

UK INSURANCE COMPANY LIMITED

Defendant

DEFENCE

1. It is admitted that on 30th January 2025 a motor vehicle driven by the Defendant's Insured, came into contact with a motor vehicle occupied by the Claimant. It is denied that this contact occurred as a result of negligent driving by the Defendant's Insured.
2. It is denied that the said collision was caused by the negligence of the Defendant's Insured.
3. The Defendant denies each allegation in the Particulars of Claim and the Claimant is put to strict proof thereof.
4. It is the Defendant's Insured's case, hereby adopted by the Defendant, that:
 - (i) They were slowly entering a yellow box junction.
 - (ii) The Claimant's vehicle, travelling in the lane to her left, moved right into her lane into the gap in front that she had left, and then stopped; not giving her the chance to avoid his vehicle thus making the collision unavoidable.
5. The collision was caused and/or contributed to by the negligent driving of the Claimant.

PARTICULARS OF NEGLIGENCE

The Claimant was negligent in that he: -

- (i) Attempted to change lanes when it was not clear and safe to do so.
- (ii) Failed to keep any or any adequate look out.
- (iii) Failed to look ahead, observe and or heed the presence of the Defendant Insured's vehicle.

- (iv) Drove into the Defendant Insured's correctly positioned vehicle.
 - (v) Failed to brake, slow down, stop or steer or otherwise control their vehicle in order to avoid a collision.
 - (vi) Drove without due care and attention.
6. Further, the Defendant disputes causation. In that respect it is the Defendant's Insured's case, hereby adopted by the Defendant: -
- (i) That the collision between the vehicles was of a very minor nature that occurred at low speed.
 - (ii) That her seatbelt did not engage and her bag at her side did not fall over.
 - (iii) That she was not jolted in the accident.
 - (iv) That her vehicle was not damaged in the incident as per the photos attached at **Exhibit UKI1**.
7. Causation of injury is denied. Since damage is a requirement of a claim in negligence the case is not fit for the entry of judgment for the Claimant.
8. The Claimant is put to proof that the severity of the impact was of sufficient force to cause the necessary occupancy movement and mechanism to cause the injuries to the extent claimed or at all.
9. In respect specifically to the alleged right wrist pain as reported by the Claimant to Mr Amgad Elkashif, no admissions are made in respect of any such alleged injuries, or their causation and the Claimant is put to strict proof thereof. In particular, the Claimant is required to explain how she was moved on impact and as to the exact mechanism of this alleged injury, by way of response to the CPR Part 18 Questions raised alongside the Defence.
10. In the event that the Court were to find that the claim and/or Claimant has been fundamentally dishonest in exaggerating his claim and alleged injuries and/or that there is no causal link between the Claimant's claim for right wrist pain and the index accident, the Defendant will contend that (a) the Claimant's QOCS protection should be disapplied pursuant to CPR r.44.16 (1); and, (b) the court must dismiss the entire claim, notwithstanding any finding made in the Claimant's favour, pursuant to s.57 of the Criminal Justice and Courts Act 2015.

11. For reasons aforesaid the contents of the report of Mr Amgad Elkashif annexed to the Particulars of Claim are not agreed. The Defendant avers that the report discloses no objective evidence of injuries as a result of this accident.
12. As with any claims arising for alleged soft tissue injuries, a treating and/or medical expert doctor is solely reliant on the Claimant providing an accurate and honest account of the accident circumstances and resulting symptoms to be able to form an accurate opinion as to the presence, nature and cause of those reported symptoms.
13. Insofar as the Claimant's account of the accident circumstances is called into question, the Defendant will aver that the Court cannot have confidence in the accuracy of the reporting of symptoms by the Claimant or any medical opinions based thereon.
14. The Defendant is aware that Mr Amgad Elkashif has had sight of the Claimant's GP records. As such, the Defendant requires sight of the full, un-redacted medical records provided to them in accordance with CPR 31.14 and **Golden v Dempsey [2010] (Manchester CC, HHJ Holman, 1 December 2010)**. In the alternative, the Second Defendant requires sight of the Claimant's GP, physiotherapy and all other relevant medical records in accordance with paragraph 50 of the judgment in **Kearsley -v- Klarfeld [2005] EWCA Civ 1510** and reserves the right to put CPR Part 35 questions to the expert upon receipt of the same.
15. The Claimant must prove his case on the balance of probabilities, and he retains the burden throughout. It is the Defendant's case that the court should consider whether he has discharged the burden against the evidential backdrop of the Defendant's concerns. Even if the Claimant was injured (albeit this is denied) by reason of an incident involving the Defendant's vehicle, the Defendant does not necessarily accept liability under the Road Traffic Act 1988 to make payment to the Claimant if she was injured in a manner significantly different from that claimed or if they have exaggerated the facts or has been complicit in exaggeration. In any of those circumstances the claim would be an abuse of process and/or unproven as alleged and the claim should be struck out. In this regard the Defendant submits the following:
 - (i) It appears that the Claimant has not attended upon any medical centre following the index accident suggesting any injuries, none being admitted, were low-level and non-intrusive. This is further supported by the fact that despite Mr Elkashif recommending physiotherapy treatment, this has not been undertaken, suggesting the alleged injuries have had no effect on the Claimant's life. The Defendant will rely on the case of **Richards & Anor Morris [2018] EWHC 1289 (QB)**.

- (ii) The Claimant has been inconsistent in his reporting as to whether he took time off work. His Small Claim Notification Form dated 21st February 2025 that he didn't take any time off work. Yet, when examined by Mr Elkashif he reported taking 2 weeks off work. As such, the Claimant is put to strict proof and the Defendant seeks disclosure of the Claimant's employment and/or occupational health records, and hereby puts the Claimant on notice that should the same not be disclosed adverse inference will be sought at the final hearing.

The Defendant is concerned regarding this inconsistency and the failure of the Claimant to include a claim for loss of earnings. The Defendant requires the Claimant to provide confirmation as to the time taken off work, if any. As this case falls partially on the credibility of the parties, these records are extremely relevant.

- (iii) The Defendant notes that the Claimant has made a personal injury claim following a previous accident on 4th October 2022. The Defendant invites the Claimant to disclose his relevant medico-legal reports and other claim documentation from this previous accident. The Defendant will also require the Claimant to answer CPR Part 18 Questions in relation to this previous claim.
- (iv) In the event the Claimant attempts to suggest that his medical report contains errors, the Defendant relies upon the Pre Action-Protocol 7.3 which states that the Claimant must check the factual accuracy of any medical report before it is sent to the Defendant. There will be no further opportunity for the Claimant to challenge the factual accuracy of a medical report after it has been sent to the Defendant.

COUNTER SCHEDULE OF LOSS

16. The Claimant's claim for the pre-accident value less the salvage in the sum of £2925.00 is denied. The Defendant avers that the accident was a Low Speed Impact which was not capable of causing this damage to the Claimant's vehicle. The Defendant disputes damage consistency and will seek to rely upon a damage consistent report.

Interest

17. The claim for interest is at the discretion of the Court. Interest on general damages should be calculated at the rate of 2% per annum from the date of service of the Claim Form to the date of judgment.
18. Interest on special damages (where an actual loss has been incurred to date) should be calculated at the rate of 0.5% per annum.
19. The statement of value is noted but not agreed.

STATEMENT OF TRUTH

The Defendant believes that the facts stated in this Defence are true. The Defendant understands that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

I am authorised to sign this statement on the Defendant's behalf.

Dated this 22nd day of January 2026



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REF: LXRR/LXRR/402420/691

IN THE CIVIL NATIONAL BUSINESS CENTRE (CNBC)

Claim No. 237DC657

B E T W E E N:

MR JABAR SAFI

Claimant

-v-

UK INSURANCE COMPANY LIMITED

Defendant

EXHIBIT UK11

Case ID: 3108113 - EK62AAN







